



MAMA MARGARET UHURU HOSPITAL

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P.O. Box 49130-00100, NAIROBI | Outering Road, Off Kamunde Road
NAIROBI CITY COUNTY

REQUEST FOR QUOTATION (RFQ)

QUOTATION NO.

QUOTATION DESCRIPTION:

TO BE SUBMITTED BY:

(day, date and time)

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REQUEST FOR QUOTATIONS (RFQ)

To: _____

DATE: _____

From: Mama Margaret Uhuru Hospital
P.O. Box 49130-00100
Nairobi, Kenya

Quotation Description: _____

Quotation No.: _____

The **Mama Margaret Uhuru Hospital** invites you to submit quotations for

_____, Quotation No.

_____, indicated in detail in "Table A. Schedule of Requirements and Specifications". The quotation shall follow the instructions and documents in this RFQ document and shall be in the English Language. Tenderers may obtain further information during office hours *0800 to 1230 hours and 1430 to 1650 hours* at the address given below.

1. Quotations shall be submitted in accordance with the instructions in Part 1: Quotation Procedures and in a sealed envelope clearly indicating the name and address of the tenderer, the quotation name and title, and must reach the Procuring Entity at the address indicated below not later than _____ . Quotations may be delivered by registered mail, courier or hand delivery at the tenderer's option. **Late quotations shall be rejected.**
2. Enquiries regarding this quotation may be addressed to:
Office of the CEO — Mama Margaret Uhuru Hospital
Att: Procurement Section
P.O. Box 49130-00100, Nairobi, Kenya
3. Any resulting contract shall be subject to the terms and conditions detailed in Part 3: Contract.
4. Please inform the undersigned by email or express mail within **three days** of receipt of this RFQ if you will not be submitting a quotation.

Address for Submission of Quotations

Mama Margaret Uhuru Hospital
P.O. Box 49130-00100
Nairobi, Kenya
Tender/Quotation Box — Ground Floor

Yours sincerely

Sign: _____

For: CEO, MAMA MARGARET UHURU HOSPITAL

PART 1: INSTRUCTIONS TO TENDERERS

1. **Tenderers are advised to read carefully** these instructions and the Conditions of Contract in Part 3: Contract before preparing the quotation. The standard forms in this RFQ may be photocopied for completion, but the Tenderer is responsible for their accurate reproduction. The term Tenderer shall mean the firm or person invited to submit a quotation. The term Quotation shall mean the quotation submitted as usually understood in public procurement.
2. **Validity of Quotations:** The quotation will be held valid for _____ days from the date of submission.
3. **The Quotation shall consist of** completed Tables A, B and C and the Form of Quotation, all indicated in Part 2 of this Request for Quotations, and documents to evidence eligibility and conformity to technical specifications.
4. **Sealing and Marking of Quotations:** Quotations in one “one original” should be sealed in a single envelope, clearly marked with the Quotation Reference Number in the RFQ, the Tenderer’s name and the name of the Procuring Entity. Envelopes should be sealed so that opening and resealing cannot be achieved undetected.
5. **Submission of Quotations:** Quotations should be submitted to the address below, on or before the date and time indicated. **Late quotations will be rejected.**
Mama Margaret Uhuru Hospital, P.O. Box 49130-00100, Nairobi, Kenya — *Tender/Quotation Box, Ground Floor*
Date of submission by: _____ Time of submission by: _____
6. **Opening of Quotations:** Quotations will be opened immediately after the closing date and time specified above, by at least three appointed officials of the Procuring Entity.
7. **Tenderer Eligibility:** The Tenderer must submit documentary evidence of eligibility to be awarded a contract, covering each of the following:
 - i. Certificate of registration / incorporation
 - ii. Valid and relevant trading licence / single business permit in the respective County Government
 - iii. Valid tax compliance certificate
 - iv. PIN certificate
 - v. Proof of registration as a supplier in Nairobi City County

The Tenderer shall also complete the attached forms to confirm eligibility and the non-existence of a conflict of interest in relation to this procurement requirement, by signing the attached forms:

- i. Duly filled, signed and stamped Form of Quotation
- ii. Duly filled, signed and stamped Price Schedule Form
- iii. Duly filled, signed and stamped Form for Disclosure of Interest
- iv. Duly filled, signed and stamped Certificate of Independent Quotation Determination
- v. Duly filled, signed and stamped Self-Declaration Form
- vi. Duly filled, signed and stamped Confidential Business Questionnaire (S33)
- vii. Duly filled, signed and stamped Form SD1 — self-declaration that the tenderer is not debarred under the Public Procurement and Asset Disposal Act 2015
- viii. Duly filled, signed and stamped Form SD2 — self-declaration that the tenderer will not engage in any corrupt or fraudulent practice
- ix. Quotation document to be paginated on all filled pages sequentially (1, 2, 3 ...)

8. **Invitation not transferable:** This invitation is not transferable to other firms or individuals not so invited.
9. **Goods Eligibility:** The Tenderer must submit documents showing the country of origin of any goods to be supplied or incorporated in the work or services.
10. **Technical Specifications:** Documentary evidence to show that the goods meet the technical specifications.
11. **Alternative Quotations:** Tenderers **are not permitted** to submit alternative quotations for goods or alternative technical solutions for specified parts of the works or services.
12. **Currency:** Quotations shall be priced in Kenya Shillings. The Procuring Entity **shall not allow** quotations in foreign currency.
13. **Evaluation of Quotations:** The evaluation will be conducted as follows:
 - i. *Preliminary examination* to determine tenderer eligibility, against each of the documents listed under item 7 above and the completed, signed and stamped forms listed thereafter.
 - ii. *Technical evaluation* to determine goods eligibility, compliance with technical specifications and commercial responsiveness. Quotations failing this stage will be rejected and not considered further.
 - iii. *Financial comparison* of quotations to determine the lowest evaluated quotation.
14. **Lowest Evaluated Quotation:** The lowest evaluated quotation shall be recommended for award of contract.
15. **Award of contract:** Award shall be by placement of a Letter of Acceptance or Local Purchase Order in accordance with Part 3: Contract. Unsuccessful tenderers who responded will be notified of the accepted quotation, indicating the name and the amount of the accepted quotation.
16. **Right to Reject:** The Procuring Entity reserves the right to accept or reject any quotation, or to cancel the quotation process and reject all quotations, at any time prior to contract award.

QUOTATION AND QUALIFICATION DOCUMENTS

Instructions to Tenderer: the Tenderer must complete and submit the following as part of the Form of Quotation.

- i. Schedule of Requirements Table
- ii. Form for Disclosure of Interest
- iii. Certificate of Independent Quotation Determination
- iv. Self-Declaration Form
- v. Foreign Tenderer 40% Rule (where provided) — **N/A**
- vi. Confidential Business Questionnaire
- vii. Self-Declaration Forms SD1 and SD2

FORM OF QUOTATION [To be completed by Tenderer]

Quotation Addressed to (Procuring Entity)	Mama Margaret Uhuru Hospital
Date of Quotation	
Quotation Reference Number	
Subject of Quotation	

1. We have examined and have no reservations to the Request for Quotation document, and understand its full content and intent.
2. In compliance with your request for quotations dated _____, referenced above, we offer to _____ *(specify one of: supply the goods, complete the works, or provide the services)* to cover and conform to our pricing listed in the attached Table B, Quotation Submission Table, at a total price of Kenya Shillings _____ (in words)

3. We confirm that we are eligible to participate in public procurement and meet the eligibility criteria specified in Part 1: Instructions to Tenderers.
4. We also confirm that the _____ *(goods to be supplied / works to be constructed / services to be provided — select one)* conform to the Schedule of Requirements Table below and are in conformity with the technical specifications listed in Part 2: Schedule of Requirements of this RFQ document.
5. We undertake to abide by the Code of Ethical Conduct for Suppliers, Contractors and Service Providers, available from www.ppra.go.ke, during the procurement process and the execution of any resulting contract.
6. We confirm that the prices quoted are fixed for the duration of the validity period and performance of the contract, and will not be subject to revision or variation.
7. The validity period of our quotation is _____ days from the time and date of the submission deadline *(same number as in the Instructions to Tenderers)*.
8. We confirm we are not submitting any other quotation as an individual or firm, and are not participating in any other quotation as a joint venture member or as a subcontractor.
9. We, along with any of our subcontractors, suppliers, engineers, manufacturers or service providers for any part of the contract, are not subject to and not controlled by any entity or individual that is subject to a temporary suspension or debarment imposed by the Public Procurement Regulatory Authority or any other entity of the Government of Kenya, or any international organisation.

10. We hereby certify that we have taken steps to ensure that no person acting for us or on our behalf engages in any type of fraud or corruption.
11. We hereby certify and confirm that the quotation is genuine, non-collusive and made with the intention of accepting the contract if awarded. To this effect we have signed the “Certificate of Independent Quotation Determination” attached below.
12. We, the Tenderer, have completed fully and signed the Form for Disclosure of Interest — interest of the firm in the Procuring Entity — attached below.

The Delivery/Completion period offered is _____ days from the date of acceptance of the quotation.

The warranty period offered is _____ weeks.

Quotation Authorised by:

Name: _____

Designation: _____

Signature: _____

i) SCHEDULE OF REQUIREMENTS TABLE

(Tenderer should complete columns D and E)

S/NO	ITEM DESCRIPTION	UNIT OF ISSUE	QTY	UNIT COST	TOTAL COST
1.					
2.					
3.					
4.					
5.					
TOTAL					

Name: _____

Position: _____

Signature: _____

Authorised for and on behalf of *(specify name of tenderer)*

Date: _____

And seal / stamp

TABLE B. QUOTATION SUBMISSION TABLE

[To be completed by the Tenderer. This is the priced offer referred to in the Form of Quotation and forms part of any resulting contract.]

Quotation Reference Number						
Name of Tenderer						
Date						

S/NO	ITEM DESCRIPTION	UNIT OF ISSUE	QTY	UNIT PRICE (KES)	VAT (KES)	TOTAL PRICE (KES)
1.						
2.						
3.						
4.						
5.						
6.						
7.						
8.						
SUB-TOTAL						
VAT (16%)						
GRAND TOTAL (inclusive of all taxes)						

Total quotation price in words:

Prices shall be quoted in Kenya Shillings, inclusive of all taxes and delivery charges, and shall be fixed for the validity period and the performance of the contract.

Name: _____

Position: _____

Signature: _____

Authorised for and on behalf of *(name of tenderer)*

Date: _____

And seal / stamp

ii) FORM FOR DISCLOSURE OF INTEREST

i. Interest of the Firm in the Procuring Entity

Are there any person/persons in **Mama Margaret Uhuru Hospital (MMUH)** who has/have an interest or relationship in this firm? Yes / No _____

If yes, provide details as follows.

	Names of Person	Designation in the Procuring Entity	Interest or Relationship with Tenderer
1			
2			
3			

ii. Conflict of interest disclosure

	Type of Conflict	Disclosure YES or NO	If YES provide details of the relationship with Tenderer
1	Tenderer directly or indirectly controls, is controlled by, or is under common control with another tenderer.		
2	Tenderer receives or has received any direct or indirect subsidy from another tenderer.		
3	Tenderer has the same legal representative as another tenderer.		
4	Tenderer has a relationship with another tenderer, directly or through common third parties, that puts it in a position to influence the quotation of another tenderer, or influence the decisions of the Procuring Entity regarding this quotation process.		
5	Any of the Tenderer's affiliates participated as a consultant in the preparation of the design or technical specifications of the works that are the subject of the quotation.		
6	Tenderer would be providing goods, works, non-consulting services or consulting services during implementation of the contract specified in this Quotation Document.		
7	Tenderer has a close business or family relationship with a professional staff member of the Procuring Entity who is directly or indirectly involved in the preparation of the Quotation document or specifications of the contract, and/or the quotation evaluation process of such contract.		
8	Tenderer has a close business or family relationship with a professional staff member of the Procuring Entity who would be involved in the implementation or supervision of the contract.		
9	Has the conflict stemming from such relationship stated in items 7 and 8 above been resolved in a manner acceptable to		

	the Procuring Entity throughout the quotation process and execution of the contract?		
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iii. Certification

On behalf of the Tenderer, I certify that the information given above is complete, current and accurate as at the date of submission.

Full Name: _____

Title or Designation: _____

Signature: _____ Date: _____

iii) CERTIFICATE OF INDEPENDENT QUOTATION DETERMINATION

I, the undersigned, in submitting the accompanying Letter of Quotation to **Mama Margaret Uhuru Hospital** *[Name of Procuring Entity]* for

_____ *[Name and number of quotation]* in response to the request for quotations made by **Mama Margaret Uhuru Hospital**, do hereby make the following statements that I certify to be true and complete in every respect:

I certify, on behalf of _____ *[Name of Tenderer]* that:

1. I have read and I understand the contents of this Certificate;
2. I understand that the Tenderer will be disqualified if this Certificate is found not to be true and complete in every respect;
3. I am the authorised representative of the Tenderer with authority to sign this Certificate and to submit the quotation on behalf of the Tenderer;
4. For the purposes of this Certificate and the quotation, I understand that the word “competitor” shall include any individual or organisation, other than the Tenderer, whether or not affiliated with the Tenderer, who:
 - a. has been requested to submit a quotation in response to this request for quotations;
 - b. could potentially submit a quotation in response to this request for quotations based on their qualifications, abilities or experience;
5. The Tenderer discloses that *[check one of the following, as applicable]*:
 - a. the Tenderer has arrived at the quotation independently from, and without consultation, communication, agreement or arrangement with, any competitor; _____
 - b. the Tenderer has entered into consultations, communications, agreements or arrangements with one or more competitors regarding this request for quotations, and discloses, in the attached document(s), complete details thereof, including the names of the competitors and the nature of, and reasons for, such consultations, communications, agreements or arrangements; _____
6. In particular, without limiting the generality of paragraphs 5(a) or 5(b) above, there has been no consultation, communication, agreement or arrangement with any competitor regarding: (a) prices; (b) methods, factors or formulas used to calculate prices; (c) the intention or decision to submit, or not to submit, a quotation; or (d) the submission of a quotation which does not meet the specifications of the request for quotations; except as specifically disclosed pursuant to paragraph 5(b) above;
7. In addition, there has been no consultation, communication, agreement or arrangement with any competitor regarding the quality, quantity, specifications or delivery particulars of the works or services to which this request relates, except as specifically authorised by the procuring authority or as specifically disclosed pursuant to paragraph 5(b) above;
8. The terms of the quotation have not been, and will not be, knowingly disclosed by the Tenderer, directly or indirectly, to any competitor, prior to the date and time of the official quotation opening, or of the awarding of the contract, whichever comes first, unless otherwise required by law or as specifically disclosed pursuant to paragraph 5(b) above.

Name: _____

Title: _____

Signature: _____

Date: _____

[Name, title and signature of authorised agent of Tenderer, and date]

iv) SELF-DECLARATION FORM

We, the Tenderer _____ (insert name) submitting our
quotation in respect of Quotation No. _____ for
_____ (insert quotation title/description) for
Mama Margaret Uhuru Hospital (name of Procuring Entity)

DECLARE AS FOLLOWS:

That we, the Tenderer, including any entity or individual that directly or indirectly controls, is controlled by or is under common control with us, and any subcontractors, suppliers, project managers, consultants, manufacturers, service providers, agents, individuals, or any other party involved or to be involved in any part of the processes of procurement and contract execution related to the above quotation:

- a. have not engaged and will not engage in any corrupt or fraudulent practices in the processes of procurement and contract execution related to the above quotation, as defined and/or described in:
 - i. the RFQ for the above quotation;
 - ii. Kenya's Public Procurement and Asset Disposal Act 2015 and its attendant Regulations;
 - iii. Kenya's Anti-Corruption and Economic Crimes Act 2003; and
 - iv. any such other Acts or Regulations of the Government of Kenya;
- b. have not offered and will not offer any inducement to any member of the board, management, staff and/or employees and/or agents of **Mama Margaret Uhuru Hospital**;
- c. have not engaged and will not engage in any collusive or coercive practice with other tenderers participating in the subject quotation;
- d. have not been sanctioned or debarred by any entity from participation in public procurement proceedings of Kenya.

That what is deponed to herein above is true to the best of our knowledge, information and belief.

Name of the Tenderer: _____

Name of the person duly authorised to sign the quotation on behalf of the Tenderer:

Title of the person signing the quotation: _____

Signature of the person named above: _____

v) FOREIGN TENDERER 40% RULE – NOT APPLICABLE

(Not to be included in the RFQ for supply of goods, supply and installation of plant and equipment, insurance, purchase of property, and other RFQs where this rule may not be practical.)

Pursuant to the provisions of the Public Procurement and Asset Disposal Act 2015, a foreign tenderer must complete this form to demonstrate that the quotation fulfils this condition.

ITEM	Description of Work Item	Describe location of Source	COST in K. Shillings	Comments, if any
A Local Labour				
1				
2				
B Subcontracts from Local Sources				
1				
2				
C Local Materials				
1				
2				
D Use of Local Plant and Equipment				
1				
2				
E Any Other Items				
1				
2				
TOTAL COST LOCAL CONTENT				
PERCENTAGE OF CONTRACT PRICE				

vi) CONFIDENTIAL BUSINESS QUESTIONNAIRE

Instruction to Tenderer: complete the particulars required in this form — one form for each entity if the Tenderer is a joint venture. The Tenderer is reminded that it is an offence to give false information on this form.

a) Tenderer's details

	ITEM	DESCRIPTION
1	Name of the Procuring Entity	Mama Margaret Uhuru Hospital
2	Name of the Tenderer	
3	Reference Number of the Tender	
4	Date and Time of Tender Opening	
5	Full Address and Contact Details of the Tenderer	
	1. Country	
	2. City	
	3. Location	
	4. Building	
	5. Floor	
	6. Postal Address	
	7. Name and email of contact person	
6	Current trade licence registration number and expiry date	
7	Name, country and full address (postal and physical addresses, email and telephone number) of registering body/agency	
8	Description of nature of business	
9	Maximum value of business which the Tenderer handles	
10	State if the Tenderer's company is listed on a stock exchange; give name and full address of the stock exchange	

General and Specific Details

b) Sole Proprietor — provide the following details.

Name in full _____

Age _____ Nationality _____

Country of Origin _____ Citizenship _____

c) Partnership — provide the following details.

	Names of Partners	Nationality	Citizenship	% Shares owned
1				
2				
3				

d) Registered Company — provide the following details.

i) Private or public company _____

ii) State the nominal and issued capital of the company —
Nominal Kenya Shillings (equivalent) _____
Issued Kenya Shillings (equivalent) _____

iii) Give details of directors as follows.

	Names of Director	Nationality	Citizenship	% Shares owned
1				
2				
3				

Name: _____

Title: _____

Signature: _____

Date: _____

[Name, title and signature of authorised agent of Tenderer, and date]

vii) SELF-DECLARATION FORMS

FORM SD1

**SELF-DECLARATION THAT THE PERSON/TENDERER IS NOT DEBARRED IN THE MATTER
OF THE PUBLIC PROCUREMENT AND ASSET DISPOSAL ACT 2015**

I _____ of Post Office Box _____ being
a resident of _____ in the Republic of _____ do hereby make a
statement as follows:

1. THAT I am the Company Secretary / Chief Executive / Managing Director / Principal Officer / Director
of _____ *(insert name of the company)* who is a bidder in
respect of Quotation No. _____ for
_____ *(insert tender title/description)* for
Mama Margaret Uhuru Hospital and duly authorised and competent to make this statement.
2. THAT the aforesaid bidder, its directors and subcontractors have not been debarred from participating
in procurement proceedings under Part IV of the Act.
3. THAT what is deponed to herein above is true to the best of my knowledge, information and belief.

(Title) (Signature) (Date)

Bidder's Official Stamp

FORM SD2

SELF-DECLARATION THAT THE PERSON/TENDERER WILL NOT ENGAGE IN ANY
CORRUPT OR FRAUDULENT PRACTICE

I _____ of P.O. Box _____ being a
resident of _____ in the Republic of _____ do hereby make a
statement as follows:

1. THAT I am the Chief Executive / Managing Director / Principal Officer / Director of
_____ *(insert name of the company)* who is a bidder in
respect of Quotation No. _____ for
_____ *(insert quotation title/description)*
for **Mama Margaret Uhuru Hospital** and duly authorised and competent to make this statement.
2. THAT the aforesaid bidder, its servants and/or agents and/or subcontractors will not engage in any
corrupt or fraudulent practice and has not been requested to pay any inducement to any member of the
board, management, staff and/or employees and/or agents of **Mama Margaret Uhuru Hospital**,
which is the procuring entity.
3. THAT the aforesaid bidder, its servants and/or agents and/or subcontractors have not offered any
inducement to any member of the board, management, staff and/or employees and/or agents of **Mama
Margaret Uhuru Hospital**.
4. THAT the aforesaid bidder will not engage, and has not engaged, in any coercive practice with other
bidders participating in the subject tender.
5. THAT what is deponed to herein above is true to the best of my knowledge, information and belief.

(Title) (Signature) (Date)

Bidder's Official Stamp

PART 2: SCHEDULE OF REQUIREMENTS

TABLE A. SCHEDULE OF REQUIREMENTS, TECHNICAL SPECIFICATIONS

[Procuring Entity to complete columns a–d; Tenderer to complete column E indicating YES or NO, and if NO indicate the specification of the offered item.]

S/NO	DESCRIPTION OF ITEMS	UNIT OF ISSUE	QTY	CONFORMITY WITH TECHNICAL SPECIFICATIONS (completed by tenderer)
1.				
2.				
3.				
4.				
5.				

TECHNICAL SPECIFICATIONS FOR GOODS / WORKS / SERVICES

- a. A preliminary description of the proposed works/services and work method and schedule, including drawings and charts as necessary, containing all information by which the proposed works may be evaluated (technical characteristics, operational capacities, maintenance, environmental effect, etc.), together with manuals or instructions for use, any other relevant information and documentation, and delivery/installation schedules.
- b. A detailed statement of how the tenderer will carry out the works/services, which will form an integral part of the contract.
- c. **DRAWINGS — NOT APPLICABLE** *(Procuring Entity to attach drawings, if any)*

PART 3: CONTRACT

CONTRACT AGREEMENT

(1) THIS CONTRACT AGREEMENT is made _____ (specify date).

Between **Mama Margaret Uhuru Hospital** [Procuring Entity], having its principal place of business at P.O. Box 49130-00100, Outering Road, Off Kamunde Road, Nairobi, and

_____ [insert name of supplier, contractor or service provider],
having its principal place of business at _____

(2) WHEREAS the Procuring Entity invited quotations for the supply of goods/works/services (select one) described in Table B, i.e. _____ [insert brief description] and has accepted a quotation by the Tenderer in the sum of _____

_____ [insert contract price in words and figures] (hereinafter called “the Contract Price”).

(3) NOW THIS AGREEMENT WITNESSES AS FOLLOWS:

1. This Contract Agreement includes the following documents:
 - a. Table A. Schedule of Requirements and Technical Specifications
 - b. Table B. Quotation Submission Table
 - c. Form of Quotation
 - d. Conditions of Contract
2. In consideration of the payments to be made by the Procuring Entity to the supplier/contractor/service provider as hereinafter mentioned, the supplier/contractor/service provider hereby covenants with the Procuring Entity to provide the goods/works/services and to remedy defects therein, in conformity in all respects with the provisions of the contract.
3. The Procuring Entity hereby covenants to pay the supplier/contractor/service provider, in consideration of the provision of the goods/works/services and the remedying of defects therein, the Contract Price or such other sum as may become payable under the provisions of the contract, at the times and in the manner prescribed by the contract.

(4) IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with the laws of Kenya.

For and on behalf of the Procuring Entity

Signed: _____

In the capacity of: _____

In the presence of: _____

For and on behalf of the Supplier / Contractor / Service Provider (select one)

Signed: _____

In the capacity of: _____

In the presence of: _____

CONDITIONS OF CONTRACT

1. **Language.** The contract, as well as all correspondence and documents relating to the contract exchanged by the supplier/contractor/service provider and the Procuring Entity, shall be written in the English language.
2. **Eligibility.** The goods shall have the nationality of an eligible country. All goods and related services to be supplied under the contract shall have their origin in eligible countries.
3. **Notices.** Any notice given by one party to the other pursuant to the contract shall be in writing.
4. **Governing Law.** The contract shall be governed by and interpreted in accordance with the laws of Kenya, unless otherwise specified hereunder.
5. **Settlement of Disputes.** The Procuring Entity and the supplier/contractor/service provider shall make every effort to resolve amicably, by direct informal negotiation, any disagreement or dispute arising between them under or in connection with the contract. If the parties fail to resolve their dispute or difference by such mutual consultation, either party may give notice to the other of its intention to commence arbitration. The dispute shall be referred to adjudication or arbitration in accordance with the laws of Kenya.
6. **Supplier / Contractor / Service Provider Responsibilities.** The supplier/contractor/service provider shall supply all the goods included in the Schedule of Requirements.
7. **Contract Price.** Prices charged by the supplier/contractor/service provider under the contract shall not vary from the prices quoted in its quotation.
8. **Terms of Payment.** The Contract Price shall be paid one hundred (100) percent as follows (*select one*):
 - i. For goods: price of goods received, upon submission of a claim/invoice supported by the acceptance certificate issued by the Procuring Entity.
 - ii. For works: upon valuation by the contractor of the portion of the works completed, such valuation to be accepted by the Procuring Entity, payments up to final completion certificate.
 - iii. For services: upon valuation by the service provider of the services completed, such valuation to be accepted by the Procuring Entity, payments up to final completion certificate.
9. **Inspections and Tests.** The supplier/contractor/service provider shall, at its own expense and at no cost to the Procuring Entity, carry out all such tests and/or inspections of the goods, works or services to confirm their conformity to technical specifications.
10. **Warranty.** The supplier warrants that all the goods are new, unused and of the most recent or current models, and that they incorporate all recent improvements in design and materials, unless provided otherwise in the contract.